

		- Jury fees: Defendant seeks to tax/strike \$150 in jury fees because the case never went to trial and was settled; - Court reporter fees: Defendant seeks to strike/tax \$550 in court reporter fees given that Plaintiff failed to provide any documentary evidence to substantiate these costs; and - Electronic filing fees: Defendant seeks to strike/tax \$193.69 in filing fees as being unsubstantiated. Defendant cites to Section 1033.5 to support its arguments and asserts that the costs are not recoverable because they were not reasonably necessary for the conduct of litigation. However, Defendant fails to address the fact that Plaintiffs may also rely on Section 1794, which is broader and more expansive than section 1033.5. The court has reviewed the disputed costs and finds that the filing fees, jury fees, and electronic filing fees to which Defendant objects are reasonable and awardable under Section 1794 and/or Section 1033.5. With respect to the court reporter fees, Plaintiffs contend that this is the anticipated expense that Plaintiffs will incur for the September 21, 2026 hearing on the motion for attorney's fees. While Plaintiffs may recover the costs of a court reporter for a necessary hearing, the actual amount of these costs cannot be determined at this time. Therefore, the court will deny the motion as it relates to the filing fees, jury fees, and filing fees, and grant the motion as it relates to the court reporter fees. However, Plaintiffs may amend the memorandum of costs to add court reporter fees once those costs actually are incurred. Plaintiffs shall give notice of this ruling.
7	ODK Capital, LLC vs. The Tradesman Electric, Inc. 30-2025-01487373	<u>Motion to Set Aside</u> Defendant Thomas Sheltraw's Motion to Set Aside Default is GRANTED.

		The Entry of Default against Defendant Thomas Sheltraw dated January 13, 2026 (ROA #35) is VACATED. Defendant Thomas Sheltraw shall file and serve the proposed Answer – Contract that is attached as Exhibit 1 to the Declaration of Thomas Sheltraw within 15 days of this ruling. Plaintiff ODK Capital, LLC’s Request for Court Judgment (ROA #35) is DENIED without prejudice. <u>Pending Motion</u> Defendant Thomas Sheltraw (Defendant Sheltraw) moves to set aside the default entered against him on January 13, 2026 by Plaintiff ODK Capital, LLC (Plaintiff). <u>Standard to Set Aside Entry of Default</u> The Civil Procedure Code grants the court discretion to “relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473, subd. (b).) “Because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default.” (<i>Elston v. City of Turlock</i> (1985) 38 Cal.3d 227, 233, superseded by statute, on other grounds, as discussed in <i>Tackett v. City of Huntington Beach</i> (1994) 22 Cal.App.4th 60, 64.) “Section 473 is often applied liberally where the party in default moves promptly to seek relief, and the party opposing the motion will not suffer prejudice if relief is granted.” (<i>Ibid.</i>) Nonetheless, the requirement that the judgment or order have been entered through “inadvertence, surprise, excusable neglect, or mistake” is “not meaningless, and the party requesting such relief must affirmatively show that the situation is one which clearly falls within such category.” (<i>In re Wolper’s Estate</i> (1956) 146 Cal.App.2d 249, 251.) As the Court of Appeal has explained: It is obvious that a party who seeks relief under [section 473] must make a showing that due to some mistake, either of fact or of law, of himself [or herself] or of his [or her] counsel, or through some inadvertence, surprise or neglect which may properly be considered excusable, the judgment or
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		order from which he [or she] seeks relief should be reversed. In other words, a burden is imposed upon the party seeking relief to show why he [or she] is entitled to it, and the assumption of this burden necessarily requires the production of evidence. (<i>Hewins v. Walbeck</i> (1943) 60 Cal.App.2d 603, 609-610.) Thus, in a motion to set aside a default judgment or order under Section 473(b), the initial burden is on the moving party to prove mistake, inadvertence, surprise, or excusable neglect by a "preponderance of the evidence." (<i>Kendall v. Baker</i> (1988) 197 Cal.App.3d 619, 624.) In addition, an "[a]pplication for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, <i>otherwise the application shall not be granted . . .</i>" (Code Civ. Proc., § 473, subd. (b), italics added.) Here, Defendant Sheltraw has established that entry of default resulted from excusable mistake, inadvertence, surprise, or neglect. Defendant Sheltraw attempted to file a timely answer, but failed to pay the filing fee, which resulted in the answer being voided. (See ROA #17.) Further, Defendant Sheltraw attached a proposed answer as Exhibit 1 to his declaration. (See Decl. of Thomas Sheltraw, Exh. 1.) Therefore, Defendant Sheltraw has met his burden under Section 473(b). In response, Plaintiff has filed a Non-Opposition to Defendant's Motion to Set Aside Default to Allow Defendant's Answer to Complaint, in which it states that "Plaintiff does not oppose Defendant Thomas Sheltraw's Motion to Set Aside the Default and Default judgement as it pertains to him." (See ROA #52 at p. 1.) Therefore, given the liberal policy of favoring a determination on the merits, the court will grant the motion to set aside. Plaintiff has requested a default judgment against Defendant Sheltraw and Defendant The Tradesman Electric, Inc.
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		A default judgment may not be issued against Defendant Sheltraw because the court has vacated entry of default against him. A default judgment may not be issued against Defendant The Tradesman Electric, Inc. at this time. Under the one judgment rule, any judgment must encompass both Defendant Sheltraw and Defendant The Tradesman Electric, Inc. unless good cause is shown pursuant to Civil Procedure Code section 579. In this case, no separate judgment has been requested and no good cause has been shown. Accordingly, the court will deny Plaintiff's request for a default judgment without prejudice. (fn.1) (fn.1) Defendant Sheltraw also requests that the court deny Plaintiff's request for default judgment against both Defendants due to Plaintiff's failure to comply with a mandatory arbitration provision. However, the issue of a default judgment is moot for the reasons stated. The court clerk shall give notice of this ruling.
8	Ferron vs. Lucidi Construction, Inc. 30-2022-01268483	<u>Motion for Summary Judgment and/or Adjudication</u> There is no tentative ruling at this time. The court will hear from parties or their counsel.
9	Doe vs. Roe Counselor; Roe School 30-2022-01291594	<u>Motion for Summary Judgment and/or Adjudication</u> Defendant Huntington Beach City School District's Motion for Summary Judgment, or in the Alternative, Summary Adjudication of the Issues is CONTINUED to pursuant to the stipulation of the parties.